

TERMS & CONDITIONS

Effective Date: 1st of May, 2026

Welcome to Samay ("Company", "we", "our", or "us").

These Terms & Conditions ("Terms") govern the access, browsing, use, purchase activities, transactions, communications, and overall interaction with the Company's website, products, services, online platforms, retail operations, and associated business channels.

These Terms constitute a legally binding agreement between the Company and any individual, customer, visitor, user, purchaser, or entity ("User", "Customer", "you", or "your") accessing or using the website or purchasing products from the Company.

By accessing the website, creating an account, browsing products, placing an order, making a payment, subscribing to communications, or otherwise interacting with the Company, you acknowledge that you have read, understood, and agreed to be legally bound by these Terms, along with all related policies referenced herein including but not limited to the Privacy Policy, Shipping, Delivery, Exchange & Warranty Policy, and Authenticity & Product Assurance Policy.

If you do not agree with these Terms, you are advised not to access or use the website or services.

1. WEBSITE ACCESS & ELIGIBILITY

The website and services offered by the Company are intended for individuals who are legally capable of entering into binding contracts under applicable laws.

By using the website, you represent and warrant that you are at least 18 years of age or are accessing the website under the supervision and consent of a lawful parent or guardian.

The Company reserves the right to refuse access, terminate accounts, cancel orders, restrict services, or deny usage to any user at its sole discretion without prior notice where reasonably necessary for operational, legal, security, fraud prevention, or policy enforcement purposes.

2. ACCEPTANCE OF TERMS

By accessing the website, browsing products, communicating with the Company, placing an order, or completing a transaction, users expressly acknowledge and agree that they have read and understood these Terms, consent to all applicable policies of the Company, agree to comply with all operational procedures and legal obligations applicable to transactions conducted through the website, and understand that continued use of the website constitutes ongoing acceptance of these Terms and any future modifications thereto.

Users additionally acknowledge that acceptance checkboxes, electronic confirmations, digital acknowledgments, order placement actions, payment completion, or continued

website usage may constitute legally valid acceptance of these Terms to the fullest extent permitted under applicable laws.

3. PRODUCTS, BRAND REPRESENTATION & AUTHENTICITY

The Company operates as a multi-brand watch retailer offering products belonging to various categories including fashion brands, premium brands, luxury brands, sports watches, designer labels, lifestyle brands, and internationally distributed watch manufacturers.

All trademarks, logos, product names, images, brand identities, and intellectual property displayed on the website belong to their respective owners unless expressly stated otherwise.

The Company undertakes commercially reasonable efforts to ensure that all products offered through its platforms are genuine and sourced through legitimate and authorized channels.

However, customers acknowledge that brand packaging, manuals, warranty structures, accessories, inserts, branding presentation, and product representation may vary depending upon manufacturer practices, regional distribution systems, production batches, packaging updates, or brand-level revisions.

The Company does not claim ownership over third-party trademarks nor imply exclusive affiliation beyond applicable authorized retail relationships where relevant.

4. PRODUCT INFORMATION, SPECIFICATIONS & ACCURACY

The Company undertakes commercially reasonable efforts to ensure that all product descriptions, specifications, pricing, dimensions, images, colors, model references, stock availability, warranty information, and related product details displayed on the website remain accurate and updated.

However, despite reasonable operational and technical efforts, occasional human errors, typographical mistakes, pricing discrepancies, specification inaccuracies, synchronization delays, technical glitches, image mismatches, stock update delays, or unintentional omissions may occur.

Accordingly, the Company does not guarantee that all information displayed on the website shall always remain completely accurate, current, continuously updated, or entirely error-free.

The Company reserves the right, at its sole discretion, to correct inaccuracies, revise pricing, modify specifications, update product information, replace images, discontinue products, limit quantities, refuse transactions, cancel affected orders, or contact customers for clarification prior to order processing.

Minor visual variations resulting from photography lighting, screen settings, packaging updates, production variations, or manufacturer revisions shall not be considered defects or grounds for dispute.

5. ACCOUNT REGISTRATION & CUSTOMER RESPONSIBILITY

Certain features of the website may require account registration or submission of personal information.

Users are responsible for maintaining confidentiality of their account credentials, login information, passwords, and account activity.

Users agree to provide accurate, current, complete, and lawful information during registration, checkout, communication, and order placement processes.

The Company shall not be liable for losses arising from unauthorized account access, inaccurate customer information, misuse of login credentials, customer negligence, or unauthorized usage occurring through registered accounts.

Users additionally agree not to impersonate another individual, submit misleading information, create fraudulent accounts, interfere with website operations, attempt unauthorized system access, introduce malicious software, scrape website content, or engage in unlawful or abusive conduct through the platform.

6. ORDERS, ACCEPTANCE & CANCELLATION RIGHTS

All orders placed through the website shall remain subject to operational review, payment verification, stock availability, fraud screening, and final acceptance by the Company.

Order confirmation emails, payment acknowledgments, or transaction receipts shall not automatically constitute final acceptance of an order by the Company.

The Company reserves the right to refuse or cancel orders, restrict quantities, hold transactions for verification, request additional documentation, or decline service at its sole discretion without prior notice.

Orders may be cancelled or rejected in circumstances including but not limited to pricing inaccuracies, stock unavailability, payment verification issues, suspected fraudulent activity, operational errors, technical failures, duplicate transactions, customer information discrepancies, or violation of these Terms.

The Company additionally reserves the right to cancel transactions after order placement where fulfillment becomes commercially impractical, operationally impossible, or legally restricted.

7. PRICING, PAYMENTS & TAXES

All prices displayed on the website are subject to applicable taxes unless otherwise specified.

The Company reserves the right to revise pricing, promotional offers, discounts, availability, or product configurations at any time without prior notice.

Payments may be processed through authorized payment gateway providers, banking institutions, financial intermediaries, or digital payment systems approved by the Company.

The Company does not store complete payment authentication credentials including CVV numbers, UPI PINs, or banking passwords on its systems.

Customers acknowledge that payment authorization remains subject to approval by respective financial institutions and payment processors.

The Company shall not be liable for payment failures, banking interruptions, transaction delays, gateway errors, or third-party financial system disruptions beyond its reasonable control.

8. SHIPPING, DELIVERY & DISPATCH

Orders are generally processed and dispatched within approximately 24 to 48 hours from successful payment confirmation, subject to operational conditions and stock availability.

Estimated delivery timelines generally range between 3 to 7 business days depending upon delivery location, courier availability, operational circumstances, and logistical conditions.

Delivery timelines communicated by the Company are estimates only and shall not be interpreted as guaranteed delivery commitments.

The Company shall not be held liable for delays arising from courier partner disruptions, transportation issues, force majeure events, weather conditions, strikes, government restrictions, technical interruptions, regional accessibility limitations, or circumstances beyond reasonable control.

Customers are solely responsible for providing accurate delivery information and ensuring availability for shipment receipt.

9. NO RETURN & NO REFUND POLICY

All products sold by the Company are governed under a strict No Return and No Refund policy.

Once a product has been successfully delivered, returns and refunds shall not be accepted under normal circumstances.

By placing an order, customers expressly acknowledge and agree that purchases made through the Company are final, subject only to the limited exchange conditions specifically outlined under applicable Company policies.

Requests arising from change of preference, dislike of design, incorrect selection by the customer, expectation mismatch, or subjective dissatisfaction shall not qualify for return, refund, or cancellation.

10. EXCHANGE CONDITIONS

The Company may, at its sole discretion, consider exchange requests only under limited circumstances including delivery of incorrect products, manufacturing defects identified upon delivery, substantial mismatch with confirmed order details, or transit-related damage verified by the Company.

Exchange requests must be reported within 24 hours from the time of delivery through the Company's official support channels.

Customers may be required to provide photographs, videos, unboxing recordings, packaging evidence, invoices, and additional documentation reasonably necessary for verification purposes.

Products must remain unused, untampered, and accompanied by original packaging, accessories, warranty cards, tags, and related materials.

The Company reserves the right to reject exchange requests where evidence is insufficient, timelines are exceeded, packaging is tampered, products show signs of usage, or claims appear unverifiable or fraudulent.

11. WARRANTY DISCLAIMER & BRAND WARRANTY

Products sold by the Company may include applicable manufacturer warranty coverage wherever provided by the respective brand.

Warranty duration, exclusions, procedures, and servicing terms shall vary depending upon the respective manufacturer and product category.

All warranty-related services, repairs, approvals, replacements, and claims shall remain subject solely to the policies and decisions of the respective brand or authorized service provider.

The Company shall not be independently liable for warranty claim approvals or rejections, repair timelines, brand servicing decisions, manufacturer delays, or warranty limitations imposed by respective brands.

Customers are advised to preserve original invoices, warranty cards, tags, and related documentation for future servicing and warranty purposes.

12. INTELLECTUAL PROPERTY RIGHTS

All website content including logos, designs, graphics, images, videos, product descriptions, text, layouts, software elements, branding materials, website structure, visual assets, and associated intellectual property belongs to the Company or respective lawful owners and remains protected under applicable intellectual property laws.

Users shall not copy, reproduce, distribute, modify, scrape, publish, exploit, transmit, or commercially use website content without prior written authorization from the Company or respective lawful rights holders.

Unauthorized usage of intellectual property may result in legal action, account restriction, service denial, or other remedies available under applicable laws.

13. USER CONDUCT & PROHIBITED ACTIVITIES

Users agree not to use the website for unlawful purposes, engage in fraudulent transactions, interfere with website operations, disrupt security systems, introduce malicious software, attempt unauthorized access, misuse promotional systems, engage in abusive conduct, violate applicable laws, infringe intellectual property rights, or undertake activities capable of harming the Company, its operations, customers, or third parties.

The Company reserves the right to suspend accounts, block access, refuse services, report unlawful conduct, or initiate legal proceedings where reasonably necessary.

14. PRIVACY & DATA HANDLING

Customer information collected through the website shall be handled in accordance with the Company's Privacy Policy.

By using the website, users consent to collection, storage, processing, usage, disclosure, and handling of information in accordance with applicable Company policies and operational practices.

The Company undertakes commercially reasonable efforts to maintain data security; however, users acknowledge that no internet-based system can guarantee absolute security or uninterrupted operation.

15. FRAUD PREVENTION, ORDER VERIFICATION & SECURITY REVIEW

The Company reserves the right to undertake reasonable verification procedures for any order placed through the website in order to prevent fraudulent activity, unauthorized transactions, payment abuse, identity misuse, suspicious purchasing behavior, reseller exploitation, or security-related risks.

The Company may, at its sole discretion, request additional verification documents or information including identity proof, billing verification, payment confirmation, contact verification, address confirmation, or other supporting documentation reasonably necessary for transaction validation.

Orders identified as suspicious, high-risk, commercially abusive, fraudulent, unauthorized, or inconsistent with normal purchasing behavior may be delayed, placed on hold, restricted, cancelled, or refused without prior notice.

The Company additionally reserves the right to blacklist users, accounts, devices, addresses, payment instruments, or transactions associated with fraudulent activity, policy abuse, chargeback misuse, exchange fraud, or operational security concerns.

16. RESTRICTIONS ON COMMERCIAL RESALE & BULK PURCHASES

Products sold by the Company are intended primarily for personal and lawful consumer use unless otherwise expressly authorized by the Company in writing.

The Company reserves the right to restrict, refuse, limit, or cancel bulk purchases, reseller activity, commercial redistribution, unauthorized marketplace reselling, export activity, arbitrage purchasing, or transactions suspected to be intended for unauthorized commercial exploitation.

The Company may additionally impose quantity limitations on specific products, brands, collections, or promotional offers at its sole discretion.

Unauthorized resale or commercial exploitation of products purchased through the Company may result in cancellation of orders, restriction of services, account suspension, refusal of future transactions, or other operational or legal action considered reasonably necessary by the Company.

17. WEBSITE AVAILABILITY & TECHNICAL OPERATIONS DISCLAIMER

The Company undertakes commercially reasonable efforts to maintain website accessibility, operational continuity, and platform functionality. However, uninterrupted availability of the website or related services cannot be guaranteed at all times.

The website may occasionally experience interruptions, downtime, delays, technical errors, maintenance activities, software issues, server failures, internet disruptions, cybersecurity incidents, data synchronization delays, or operational outages beyond the Company's reasonable control.

The Company reserves the right to temporarily suspend, restrict, modify, discontinue, or update any portion of the website, services, content, functionality, or operational systems without prior notice.

The Company shall not be liable for losses, inconvenience, delays, data interruptions, failed transactions, or operational disruptions arising from temporary website unavailability, technical failures, or system interruptions.

18. ELECTRONIC COMMUNICATIONS & DIGITAL CONSENT

By accessing the website, creating an account, placing an order, submitting information, communicating with the Company, or accepting these Terms electronically, users consent to receive communications from the Company through electronic means.

Such communication may include emails, SMS, WhatsApp communication, notifications, invoices, account-related communication, legal notices, service announcements, transactional updates, promotional communication, or policy-related notifications.

Users acknowledge and agree that electronic records, digital acknowledgments, electronic approvals, online acceptance mechanisms, and electronic communication shall constitute valid and legally enforceable forms of communication and agreement to the fullest extent permitted under applicable laws.

Users are responsible for maintaining accurate and active communication details for receipt of important notices and transactional communication.

19. PRICING ERRORS, TECHNICAL GLITCHES & PROMOTIONAL DISCREPANCIES

Despite commercially reasonable operational efforts, the website may occasionally contain pricing inaccuracies, typographical mistakes, promotional discrepancies, technical errors, coupon malfunctions, system glitches, synchronization delays, or incorrect discount calculations.

The Company reserves the right, at its sole discretion, to correct any such errors and to refuse, cancel, revoke, modify, or limit any transaction affected by incorrect pricing, unintended discounts, technical malfunctions, system-generated inaccuracies, promotional abuse, duplicate benefits, or operational display errors.

Customers acknowledge that obvious pricing errors, accidental zero pricing, unrealistic discounting, system-generated anomalies, or manifestly incorrect product valuations shall not create binding obligations upon the Company.

The Company shall not be obligated to honor transactions arising solely from technical glitches, human mistakes, pricing malfunctions, or unintentional promotional errors.

20. CUSTOMER CONDUCT, ABUSE & POLICY MISUSE

Users interacting with the Company agree to maintain lawful, respectful, and reasonable conduct while accessing the website, communicating with representatives, or using Company services.

The Company reserves the right to refuse service, restrict communication, suspend accounts, cancel orders, deny future transactions, or initiate legal action where users engage in abusive behavior, threats, harassment, defamatory conduct, fraudulent claims, exchange misuse, payment abuse, chargeback fraud, intentional reputational harm, social media harassment, policy manipulation, or activities reasonably considered harmful to the Company, its operations, employees, representatives, customers, or associated parties.

The Company additionally reserves the right to maintain records of abusive or fraudulent conduct for operational security, fraud prevention, and legal enforcement purposes.

21. TRANSFER OF RISK & DELIVERY RESPONSIBILITY

Risk relating to products purchased from the Company shall transfer to the customer upon successful delivery of the shipment to the delivery address provided during the order process.

Where delivery attempts are refused, unattended, delayed due to customer unavailability, or impacted by incorrect delivery information provided by the customer, the Company's responsibility may be considered fulfilled upon reasonable delivery attempt by the courier or logistics partner.

Customers are responsible for inspecting shipments promptly upon delivery and reporting concerns within the timelines specified under applicable Company policies.

The Company shall not be liable for damage, loss, misuse, theft, mishandling, or deterioration occurring after successful delivery or reasonable delivery attempt.

22. AUTOMATED ACCESS, DATA SCRAPING & UNAUTHORIZED DIGITAL USAGE

Users shall not directly or indirectly use automated systems, bots, scripts, crawlers, scraping tools, AI systems, extraction technologies, data mining tools, or similar mechanisms to access, monitor, reproduce, copy, download, manipulate, harvest, or commercially exploit website content, pricing data, product information, images, inventory systems, operational data, or digital assets without prior written authorization from the Company.

Unauthorized scraping, automated extraction, artificial intelligence training usage, commercial monitoring, replication of website content, or systematic collection of data may constitute violation of intellectual property rights, operational security policies, and applicable laws.

The Company reserves the right to restrict access, block systems, suspend accounts, pursue legal remedies, or undertake technical enforcement measures where unauthorized automated activity is detected.

23. LIMITATION OF LIABILITY

To the fullest extent permitted under applicable law, the Company shall not be liable for indirect losses, incidental damages, consequential damages, business interruptions, profit losses, shipping delays, technical interruptions, website inaccuracies, third-party failures, payment gateway disruptions, courier-related issues, manufacturer-level changes, or circumstances beyond reasonable control.

The Company's total liability arising from any transaction, dispute, claim, or use of the website shall remain limited to the purchase value of the respective product purchased from the Company.

24. INDEMNIFICATION

Users agree to indemnify, defend, and hold harmless the Company, its directors, employees, affiliates, representatives, service providers, and associated parties from and against any claims, liabilities, damages, losses, costs, expenses, or legal proceedings arising from violation of these Terms, misuse of the website, unlawful conduct, infringement of third-party rights, fraudulent activities, or breach of applicable laws or policies.

25. FORCE MAJEURE

The Company shall not be liable for failure or delay in performance arising from circumstances beyond reasonable control including natural disasters, strikes, governmental

actions, technical failures, internet disruptions, transportation interruptions, war, pandemic conditions, operational shutdowns, cyber incidents, or force majeure events.

26. GOVERNING LAW & JURISDICTION

These Terms shall be governed and interpreted in accordance with the laws of India.

Any disputes arising in connection with the website, products, transactions, services, or these Terms shall be subject to the exclusive jurisdiction of the competent courts located in Delhi, India.

27. ENTIRE AGREEMENT

These Terms & Conditions, together with the Company's Privacy Policy, Shipping, Delivery, Exchange & Warranty Policy, Authenticity & Product Assurance Policy, and any additional operational policies or legal notices published by the Company, collectively constitute the complete and entire agreement between the Company and the user regarding access to the website, purchase activities, products, services, and related transactions.

These Terms supersede any prior oral or written discussions, understandings, communications, representations, or agreements relating to the same subject matter unless expressly stated otherwise by the Company in writing.

No waiver, delay, or failure by the Company in exercising any right under these Terms shall be interpreted as a waiver of such rights.

28. SEVERABILITY

If any provision, clause, section, or portion of these Terms is determined by a competent authority or court of law to be unlawful, invalid, unenforceable, or contrary to applicable law, such provision shall be interpreted, modified, or limited only to the minimum extent necessary while preserving the intent of the provision wherever legally permissible.

The remaining provisions of these Terms shall continue to remain valid, enforceable, and fully effective to the maximum extent permitted under applicable law.

29. POLICY MODIFICATIONS

The Company reserves the right to revise, modify, update, replace, or discontinue these Terms at any time without prior notice.

Any revised version shall become effective immediately upon publication on the website unless otherwise specified.

Continued access or usage of the website following modifications constitutes acceptance of the revised Terms.

30. CONTACT INFORMATION

For questions, legal communication, support requests, or policy-related concerns, customers may contact:

Samay

Email: support@samaywatch.com

Phone: +91-85955 13656

Address: Shop No.5, New Market, Bara Gole Chakkar, Kamla Nagar, New Delhi, Delhi 110007